

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

AIRBOSS DEFENSE GROUP, LLC, *Complainant*

v.

DOCKET NO. 24-14

FEDEx TRADE NETWORKS TRANSPORT & BROKERAGE, INC.;
MEDITERRANEAN SHIPPING COMPANY S.A. AND
MEDITERRANEAN SHIPPING COMPANY (USA) INC., AS
AGENT FOR MEDITERRANEAN SHIPPING COMPANY S.A.; AND
TOTAL TERMINALS INTERNATIONAL, LLC, *Respondents*.

Served: May 1, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER SEEKING CLARIFICATION

Pursuant to 46 C.F.R. § 502.72(a)(3), if the parties to a proceeding agree to settle their dispute, the settlement agreement must be submitted with a motion seeking approval of the agreement by the presiding officer. On April 30, 2025, Complainant Airboss Defense Group, LLC (“Airboss”), and Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FedEx”), and Mediterranean Shipping Company S.A. and Mediterranean Shipping Company (USA) Inc., as Agent for Mediterranean Shipping Company S.A. (collectively, “MSC”), filed a Joint Motion for Approval of Confidential Settlement Agreement (“Motion”), with the fully executed Confidential Settlement Agreement and Release (“Joint Settlement”).

The Joint Settlement lists the various parties to the case *sub judice* and related civil actions, but it does not on its face name Mediterranean Shipping Company (USA) Inc., as Agent for Mediterranean Shipping Company S.A. (“Agent”), as a party to the Joint Settlement. Joint Settlement at 1. Because the Agent is named as a Respondent in the Federal Maritime Commission proceeding, and the Motion represents that the Joint Settlement applies to the Agent, this Order seeks clarification as to whether the Joint Settlement includes the Agent in the global settlement of claims. In providing clarification, the parties should set forth in writing the name and title of the individual who signed the Joint Settlement¹ on behalf of MSC Mediterranean Shipping Company S.A. (“MSC S.A.”), his authority to execute the agreement on behalf of both the Agent and MSC S.A., and whether the parties intended that the Joint Settlement include the Agent. Joint Settlement at 9 (appearing on page 12 of the submitted Joint Settlement). *See, General Motors LLC v. Nippon Yusen Kabushiki Kaisha*, Docket No. 15-08,

¹ The name and title are handwritten and while mostly legible, the signatory’s authority over the two entities is not clear in the absence of the Agent as a named party to the Joint Settlement.

2016 WL 4560101 (FMC Aug. 26, 2016) (Notice of Commission Determination to Review and Order for Further Explanation).

Accordingly, the parties are **ORDERED** to file a joint response by May 14, 2025, explaining how the Joint Settlement includes the Agent. In the alternative, the parties may submit a revised or supplemental confidential settlement agreement that expressly includes the Agent.
Id.



Linda S. Harris Crovella
Administrative Law Judge